



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 15, 2024

Re: CCRB Case No. 202001357 (Incident Date: February 6, 2020) involving Detective Kenneth Caulfield, Tax No. 945569 (DADS No. 2022-24615)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officer and has determined that the alleged misconduct warrants a lesser penalty.

The negotiated penalty consisted of a forfeiture of fifteen (15) vacation days. According to the Civilian Complaint Review Board's Case Analysis and Recommendation Memorandum, the penalty calculation included the presumptive penalty of the forfeiture of ten (10) vacation days for the unreasonable force specification and the forfeiture of five (5) penalty days for each of the discourtesy specifications. The discourtesy specifications were recommended to run concurrent, however the force specification was to run consecutive, totaling fifteen (15) days.

After careful consideration, the Police Commissioner determined that all three specifications should run concurrent since they arose out of the same ongoing incident. The police were called to a location where students were engaging in repeated fights outside a school and refused to comply with orders to disperse. Additionally, the discourteous comments did not appear to be made to any specific individual, including the one being detained. Therefore, the Police Commissioner intends to penalize Detective Caulfield ten (10) vacation days for the misconduct with all specifications running concurrent.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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ARVA RICE
INTERIM CHAIR

February 16, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202001357 (Incident Date: February 6, 2020) involving Detective Kenneth Caufield, Tax No. 945569 (DADS No. 2022-24615)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated February 15, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty of fifteen (15) vacation days, you believe that Detective Caufield’s misconduct warrants a lesser penalty, and that you intend on penalizing Detective Caufield ten (10) vacation days. The reasons stated for this decision are your belief that the penalties for all three specifications should run concurrently as they arose out of the same incident, and the fact that Detective Caufield’s discourteous comments did not appear to be directed to any specific individual.

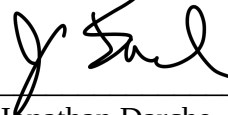
We disagree with your stated intention. On September 12, 2023, Detective Caufield pled guilty to the specifications and agreed, after consultation with his attorney, to accept a penalty of the forfeiture of fifteen (15) vacation days. While it is true that all the specifications arose in the same incident, that is hardly an unusual occurrence in disciplinary matters or one that should warrant mitigation. In the overwhelming majority of cases where an officer is charged with more than one specification, those specifications arise out of the same, ongoing incident.

In this matter, Detective Caufield admitted using unreasonable force against a 15-year-old by pushing him against a fence. He also admitted making multiple discourteous statements. While it is true that the discourteous statements did not appear to be directed against any specific

individual, they were made within earshot of the 15-year-old and another civilian. The discourteous comments were made after the 15-year-old was in custody and were made approximately two minutes after Detective Caufield's unreasonable use of force. The discourtesies were separate, discrete acts attenuated in time from the unreasonable use of force. As a result, the penalties for the discourtesies should run consecutively to the penalty for the unreasonable force, as was agreed upon by Detective Caufield.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Detective Caufield and impose upon Detective Caufield a penalty of the forfeiture of fifteen (15) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", written over a horizontal line.

Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board